

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT: Justice Muhammad Hashim Khan Kakar
Justice Ishtiaq Ibrahim
Justice Mian Gul Hassan Aurangzeb

Jail Petition No.791/2025

(Against the order/judgment dated 29.09.2025
passed by Lahore High Court, Bahawalpur Bench,
in Crl. A. No. 358-J/2023 and C. S. R. No. 2/2023)

Muhammad Sultan

Petitioner(s)

Versus

The State

Respondent(s)

For the Petitioner(s):

Mr. Anis Muhammad Shahzad, ASC

For the State:

Mr. Tariq Siddique, APG Punjab
a/w complainant in-person

Date of Hearing:

31.03.2026

JUDGMENT

Muhammad Hashim Khan Kakar, J. The Trial Court tried the petitioner, Muhammad Sultan, for the murders of Gul Naz, the wife of Khursheed Ahmed, Shahnaz Bibi, the daughter of Khursheed Ahmed, and Basra Bibi, the wife of Akbar. Through judgment dated 27.06.2023, he was convicted by the Trial Court under section 302(b) of the Pakistan Penal Code, 1860 (PPC) and section 7(a) of the Anti-Terrorism Act, 1997 (ATA) and sentenced to death on six counts. The petitioner was also found guilty under sections 435 and 427 PPC and sentenced accordingly. The petitioner, who was dissatisfied, filed an appeal with the Lahore High Court, Bahawalpur Bench, Bahawalpur. The appeal was partially granted through the impugned judgment dated 29.09.2025, which rendered the convictions and sentences under section 7(a) ATA null and void, however, the convictions and sentences under section 302(b) PPC were maintained. The petitioner's death sentence was subsequently confirmed and the capital sentence reference was answered in the affirmative.

2. The case's brief facts are as follows: On 30.09.2022, the petitioner, inspired by matrimonial litigation arising from family disputes, committed a premeditated assault by throwing petrol and setting fire to his wife, Shahnaz Bibi, the wife of the complainant, Gul Naz, and the sister-in-law of the complainant, Basra Bibi, in the shop located in the complainant's residence.

3. After meticulously reviewing the record, we have given careful consideration to the arguments presented by the learned counsel for the parties. We have observed that the High Court has exercised extreme caution and reached a just conclusion. The FIR has been promptly filed, effectively eliminating the possibility of a false implication. The parties are acquainted with one another and the incident occurred in broad daylight at 12:30 p.m., so there is no likelihood of misidentification. The ocular account was provided by Khursheed Ahmed (PW-5), Amjad Iqbal (PW-6) and Muhammad Asif (PW-7), an independent witness who is not associated with the deceased or the prosecution. These witnesses are natural witnesses, as the incident occurred at the store that is operated from the complainant's residence. Their testimony appears to be reliable and confidence-inspiring, as their accounts of the petitioner's specific role, the mode and manner of the offense's commission and other material facts have remained consistent despite extensive cross-examination. The ocular testimony is in substantial agreement with the medical evidence presented by Dr. Sara Arshad (PW-11), Dr. Maria Ghaffar (PW-12) and Dr. Ammara Irum (PW-13). Massive burns were the cause of death for all three women/deceased, as indicated by the postmortem reports. The motive established by the prosecution in relation to family litigation has also been adequately demonstrated through the production of certified copies of the relevant lawsuit. The petitioner did not present any mitigating circumstance that could have allowed this Court to adopt a more lenient posture with respect to the quantum of the sentence. The cold-blooded murder of three defenseless women, including his own wife, within the secure premises is an aggravating circumstance that justifies the utmost penalty prescribed by law.

4. The petitioner's statement, which was recorded under section 174A of the Code of Criminal Procedure, 1898 (Cr.P.C), is another critical piece of evidence in the current case. The petitioner was apprehended on 03.10.2022, and the incident occurred on 30.09.2022. The record confirms this. Abdul Kareem Inspector/Investigation Officer, who was identified as PW-21, discovered the petitioner with burn injuries during the arrest. Consequently, he prepared an injury record for the petitioner and conducted his medical examination. The medical examination revealed burn injuries that were consistent with the alleged offense. Additionally, the medical officer documented the accused's statement pursuant to section 174A of the Cr.P.C., in which the accused acknowledged the incident. In accordance with Article 91 of the Qanun-e-Shahadat Order, 1984 (QSO), the presumption of truth is given to any statement that is recorded before an officer who is authorized by law. In the same vein, this assertion is admissible in evidence in accordance with Article 153 of the QSO in addition to being pertinent. Undoubtedly, extrajudicial confessions are considered a weak form of evidence in their own right. It is imperative to exercise the utmost care and caution when relying on such confessions. However, the status of extrajudicial confessions made before a Medical Officer in the statement recorded under section 174A Cr.P.C is distinct and more reliable than other forms of extrajudicial confessions, as it contains the presumption of truth under Article 91 of the QSO. In the present instance, the ocular testimony is consistent with the medical evidence, which is further substantiated.

5. Turning to the acquittal under section 7(a) of the ATA, we find the reasoning of the High Court to be in strict consonance with the law laid down by this Court in the landmark case of *Ghulam Hussain v State* (PLD 2020 SC 61). It is a settled principle that for an act to qualify as terrorism under section 6 of the ATA, the *actus reus* must be accompanied by a specific *mens rea* like coerce and intimidate or overawe the Government or the public or a section of the public or community or sect, etc. or if such action was designed to create a sense of fear or insecurity in the society or the use or threat was made for the purpose of advancing a religious, sectarian or ethnic cause, etc. Creating fear or insecurity in the society was not by itself terrorism unless the motive itself was to create fear or

insecurity in the society and not when fear or insecurity was just a byproduct, a fallout or an unintended consequence of a private crime. In the instant case, the act was purely motivated by personal vendetta, thus, the High Court had correctly set aside the convictions and sentences under section 7(a) of the ATA.

6. For what has been discussed above, we do not find any legitimate ground to interfere with the well-reasoned impugned judgment of the High Court. Furthermore, the impugned judgment does not suffer from any non-reading or misreading of evidence. Thus, upon an overall review of the available record, the petition being without merits is dismissed and leave refused.

ISLAMABAD

31.03.2026

(Aqib Aman RO)



Approved for Reporting